

23TRCV00462 23TRCV00462

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 23TRCV00462 Hearing Date: August 17, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Monday – August 17, 2026

Calendar No.

PROCEEDINGS

Nefertiti

Abdou v. Arto John Boyajian, D.M.D., et al.

23TRCV00462

Nefertiti Abdou's Motion to Compel Further

Responses to Request for Production of Documents, Set One, and Request for
Sanctions

TENTATIVE RULING

Nefertiti Abdou's Motion to Compel

Further Responses to Request for Production of Documents, Set One, and Request
for Sanctions is denied.

Background

Plaintiff filed the Complaint on February 16, 2023. Plaintiff alleges the following facts. Plaintiff contends that Defendants committed dental malpractice.

Motion to Compel Further Responses to Request for Production of Documents

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff did not set forth a meet and confer declaration in substantial compliance with CCP § 2031.310(b)(2). Plaintiff states that Defendant filed a supplemental response to the request for production of documents on March 20, 2026. However, there is no showing that Plaintiff met and conferred with Defendant regarding the supplemental responses prior to filing this motion. (Declaration, Nefertiti Abdou, ¶¶ 10-13). For this reason alone, the motion can be denied.

Motion to Compel

Plaintiff seeks further responses to Request for Production of Documents ("RFP" or "Request[s]") Nos. 1 to 58. The Requests essentially seek documents related to the Plaintiff's recent independent medical examination including documents related to the motion to compel the examination that was filed by Defendant, documents reflecting communications between Defendant's counsel and Defendant's insurers, and documents reflecting communications between Defendant's counsel and Plaintiff's former counsel regarding the IME and other matters.

First, the Court notes that Plaintiff filed three different versions of this motion. The Court only considered the version filed on July 21, 2026 as presumably this is the most up to date version of the motion. The Court admonishes Plaintiff and informs Plaintiff that one motion reservation and one scheduled motion date means that only one motion may be filed. Defendant states that it was forced to then prepare and file separate oppositions incurring additional fees and costs.

The Court has reviewed Defendant's responses to Requests 1 to 58 and the responses are in sufficient compliance with CCP §§ 2031.210 to 2031.240. As to all the requests except for Requests 16 to 19, 52, and 57, Defendant asserted objections and set forth a substantially code-compliant response stating that all documents were previously produced on February 13, 2026 or that after a diligent search indicated that no documents exist in compliance with the request.

It appears that the bulk of Plaintiff's arguments relate to her contention that the documents that were produced are not complete. Essentially, Plaintiff contends that the documents that were produced are not in accordance with a statement of compliance but instead that Defendant has withheld documents. Here, Defendant stated that all responsive documents were produced on February 13, 2026. If the production of documents does not comport with that statement, the proper recourse would be to file a motion for compliance under CCP § 2031.320.

As to Requests 16 to 19, Defendant justified its objections as the materials related to attorney/client privileged or attorney work product matters. In addition, the requests seek information as to a completely separate malpractice action against a non-party to this action which implicates third party privacy interests. In addition, these matters, related

to completely separate litigations, are not designed to lead to the discovery of admissible evidence in the instant action.

As to Request 52, the request seeks "All communications or materials shared with or by Defendants' insurer relating to the IME." As to Request 57, the request seeks "[a]ll transmittal letters, emails, cover communications, indices, logs, or other written memorializations identifying, describing, summarizing, or referencing materials transmitted by Plaintiffs former counsel to Defendants or their insurer." Defendant justified its objections based on the attorney/client privilege and attorney work product doctrine and provided a privilege log. The responses sufficiently comply with Sections 2031.210 et seq.

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One, is denied.

Sanctions

Plaintiff's request for monetary sanctions is denied.

Defendant's request for monetary sanctions is granted.

Plaintiff is sanctioned the amount of \$1,500.00 which was derived from 6 hours to prepare and appear at \$250/hour. Sanctions are payable within 30 days of this date.

Defendant is ordered to give notice of this ruling.